

Court No. - 40

Case :- WRIT - C No. - 24060 of 2023

Petitioner :- Durga Dubey

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Rajesh Kumar Pandey, Rajesh Kumar Singh

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Surendra Singh-I, J.

1. Heard learned counsel for the petitioner; Shri Ambrish Shukla, learned Addl. Chief Standing Counsel and Shri Nitesh Patel holding brief of Shri Udit Chandra, learned counsel for respondent nos.2 and 3-Electricity Department.

2. In view of the order proposed to be passed, notices need not go to respondent no.4.

3. Present writ petition has been preferred for following reliefs:-

"(I) issue a writ, order or direction in the nature of mandamus directing the respondent Executive Engineer to proceed with disposal of petitioner's application dated 9.6.2023 (contained in Annexure No.6 to writ petition) and provide separate electricity connection in the accommodated portion of petitioner in House No.S-5/38-51 Vindhyavasini Nagar Colony, Ardali Bazar, Pargana Shivpur, Tehsil & District Varanasi;

(II) issue a writ, order or direction in the nature of mandamus directing the respondent electricity officials to accept 1/6th part of balance of electricity dues which is total in amount of Rs.53,060/-, which actually is payable from the side of petitioner."

4. Learned counsel for the petitioner states that the petitioner has stake of 1/6th portion of the property in question, which is a HUF property. For the property in question, the trial court as well as lower appellate court have rejected the claim of the petitioner regarding 1/6th share of petitioner along with her husband and directed for their eviction from the property in question. Aggrieved with the same, the petitioner preferred Second Appeal No.221 of 2022 (Vinod Kumar Dubey & Ors. v. Manoj Dubey) in which following interim order was passed on 29.3.2022:-

".....Until further orders, the impugned decree dated 11.2.2019 passed by the Addl. Civil Judge (Senior Division), Court No.3, Varanasi in O.s. No.21 of 2006 (Manoj Kumar Dubey v. Vinod Kumar Dubey & Ors.) and the appellate decree dated 18.1.2022 passed by the Additional District Judge, Court No.4, Varanasi in Civil Appeal Nos.61 of 2019 and 62 of 2019 shall remain stayed and the appellant shall not be evicted....."

5. It is contended that the aforesaid second appeal is still pending consideration. In this backdrop, learned counsel for the petitioner

states that in case there is outstanding electricity dues against the house in question, the petitioner is only responsible to pay 1/6th share of outstanding demand of electricity dues. Learned counsel for the petitioner in support of his submissions has placed reliance on Clause 4.1 and 4.3 sub-clause (g) and (h) of the Electricity Supply Code (in short "the Code"). He submits that his application is liable to be processed by the Executive Engineer Concerned in view of the said provisions.

6. Considering the facts and circumstances of the case, without expressing any opinion on merits of the issue and with the consent, the writ petition stands **disposed of** with observation that in case the petitioner deposits 1/6th share of outstanding dues, the authority concerned would process the application and redress the grievance of the petitioner as per law and as per the aforesaid provisions of Code expeditiously.

Order Date :- 24.8.2023

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